



SPONSOR: Rep. Chukwuocha & Rep. Griffith & Sen. Poore
Reps. Romer, Morrison; Sen. Wilson

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 218

AN ACT TO AMEND TITLE 10 OF THE DELAWARE CODE RELATING TO INTERPERSONAL AND SEXUAL VIOLENCE IN THE MILITARY.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 1041, Title 10 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows and by redesignating accordingly:

3 § 1041. Definitions ~~[Effective Feb. 1, 2025]~~.

4 The following terms shall have the following meanings:

5 (4) “Military protective order” means a protection order issued pursuant to 10 U.S.C. § 1567, as amended, by
6 a commanding officer in the armed forces of the United States, the Delaware National Guard, or the National Guard of
7 any other state against a person under the officer’s command.

8 Section 2. Amend § 1043, Title 10 of the Delaware Code by making deletions as shown by strike through and
9 insertions as shown by underline as follows:

10 § 1043. Ex parte orders and emergency hearings.

11 (e) If the Court finds by a preponderance of the evidence that the alleged domestic violence has occurred, or if the
12 respondent consents to entry of a protective order, the Court shall grant any appropriate relief, including, ~~but not limited to~~
13 the relief set forth in § 1045 of this title. In determining whether there is an immediate and present danger of domestic
14 violence, the Court shall consider whether a military protective order has been issued against the respondent because the
15 petitioner, the petitioner’s minor child, or an infirmed adult was a reported victim of domestic violence as defined in §
16 1041.

17 Section 3. Amend § 1046, Title 10 of the Delaware Code by making deletions as shown by strike through and
18 insertions as shown by underline as follows:

19 § 1046. Enforcement; sanctions for violation of order.

20 (c) (1) A law-enforcement officer shall arrest, with or without a warrant, any individual whom the officer has
21 probable cause to believe has violated a protective order issued under this part or a valid foreign protection order under Part
22 E of this subchapter and who has notice or knowledge of the protective order. Presentation of a protective order that

identifies both the protected person and the respondent and, on its face, is currently in effect constitutes probable cause to believe that a protective order exists. The protective order may be either in tangible form or stored in DELJIS or other electronic medium if it is retrievable in perceivable form. Probable cause for arrest may be established by a good faith reliance on information contained in DELJIS. If a protective order is not presented, the law-enforcement officer may consider other information in determining whether there is probable cause to believe that a protective order exists.

(2) If a law-enforcement officer has probable cause to believe that an individual described in paragraph (1) of this subsection is a service member in violation of a military protective order registered in the Federal Bureau of Investigation's National Crime Information Center database, the law-enforcement officer shall notify the law enforcement agency that entered the military protective order into the database that the service member may have violated the military protective order.

Section 4. Amend § 7202, Title 10 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and by redesignating accordingly:

§ 7202. Definitions ~~[Effective Feb. 1, 2025]~~.

As used in this chapter:

(5) "Military protective order" means a protection order issued pursuant to 10 U.S.C. § 1567, as amended, by a commanding officer in the armed forces of the United State or the Delaware National Guard or the National Guard of any other state against a person under such officer's command.

Section 5. Amend § 7204, Title 10 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 7204. Emergency proceedings ~~[Effective Feb. 1, 2025]~~.

(b)(2)c. The respondent poses an immediate and present danger of causing physical injury to the petitioner. In determining whether there is an immediate and present danger of causing physical injury to the petitioner, the Court shall consider whether a military protective order has been issued against the respondent.

Section 6. This Act takes effect on January 1, 2026.

SYNOPSIS

This Act requires the courts to consider whether a military protective order has been issued against a respondent in determining whether there is an immediate and present danger to the petitioner. It further requires that a law-enforcement officer notify the agency that entered a military protective order against an individual, if the law-enforcement officer has probable cause to believe that the individual violated the military protective order.